

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 19, Honorable Theodore C. Zayner Presiding

Maggie Castellon, Courtroom Clerk
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LAW AND MOTION TENTATIVE RULINGS

**DATE: June 17, 2026 TIME: 1:30 P.M.
PREVAILING PARTY SHALL PREPARE THE ORDER
UNLESS OTHERWISE STATED (SEE [RULE OF COURT 3.1312](#))**

LINE #	CASE #	CASE TITLE	RULING
LINE 1	22CV401365	Hathaway v. Alliance Roofing Company, Inc. (Class Action) (Lead Case; Consolidated with Case No. 22CV407856]	See Line 1 for tentative ruling.
LINE 2	23CV423929	Rubalcaba v. R&L Carriers Shared Services, LLC (PAGA)	See Line 2 for tentative ruling.
LINE 3	25CV479834	Ashish Chordia et al vs Chris Jo et al	Unopposed Application for admission of attorney Khawaja <i>pro hac vice</i> is GRANTED. No appearance necessary. Court will sign proposed Order.
LINE 4	25CV479834	Ashish Chordia et al vs Chris Jo et al	Unopposed Application for admission of attorney Rusie <i>pro hac vice</i> is GRANTED. No appearance necessary. Court will sign proposed Order.
LINE 5	25CV479834	Ashish Chordia et al vs Chris Jo et al	Unopposed Application for admission of attorney Stern <i>pro hac vice</i> is GRANTED. No appearance necessary. Court will sign proposed Order.
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Calendar Line 1

Case Name: *Hathaway v. Alliance Roofing Company, Inc.*
Case No.: 22CV401365
(Lead Case, Consolidated with Case No. 22CV407856)

This is a putative class and representative action arising from alleged wage and hour violations. Plaintiffs Chad Hathaway and Edwardo Contreras Ruiz (collectively, “Plaintiffs”) filed two separate cases that are now consolidated. Before the Court is defendant Alliance Roofing Company, Inc.’s (“Defendant’s”) motion for summary adjudication, which Plaintiffs oppose. For the reasons stated below, the Court DENIES the motion for summary adjudication and DENIES Defendant’s request to strike Plaintiffs’ opposition.

I. Introduction

Plaintiffs are former employees of Defendant and were members of Local Union 95 – United Union of Roofers, Waterproofers and Allied Workers (“Local 95”) during their employment with Defendant, a roofing company. Hathaway was employed from March 11, 2020 to July 24, 2020, and Ruiz was employed from February 28, 2017 to February 4, 2022. They filed their initial complaints in 2022, and the Court consolidated the two actions on April 17, 2024.

On January 30, 2025, Defendant moved to compel arbitration under the language of a collective bargaining agreement (“CBA”) agreed to by the Plaintiffs’ union and a roofing contractors association. On April 28, 2025, the Court denied that motion. In reaching its conclusion, the Court determined that the August 2024 CBA applied retroactively to Plaintiffs’ pending claims. Nevertheless, the Court denied the motion to compel arbitration because it found that Defendant had waived its right to compel arbitration through its litigation conduct over the preceding two years. (See *Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 585 “[t]he waiver inquiry is exclusively focused on the waiving party’s conduct; neither the effect of that conduct on the party seeking to avoid enforcement nor that party’s subjective evaluation of the waiving party’s intent is relevant”].)

Defendant now seeks – by motion for summary adjudication – to remove the class component from each of Plaintiffs’ causes of action while litigating Plaintiffs’ individual claims in this forum.

II. Timeliness of Opposition

In its reply, Defendant moves the Court to strike plaintiffs’ opposition as untimely. (Reply, pp. 7:22–9:28.) Defendant asserts that the opposition was filed at 6:03 p.m., after the stipulated 5:00 p.m. deadline.

The Court has discretion to consider a late-filed paper. (Cal. Rules of Court, rule 3.1300(d).) The opposition was filed on the day it was due, approximately one hour later than as previously agreed by the parties, in their Stipulation and Order filed September 10 2025 which continued the hearing and briefing schedule to this date, pending mediation. Defendant received the opposition the same day and filed a comprehensive reply addressing its substance. Defendant has not demonstrated prejudice resulting from the delay. Consistent with the strong policy favoring resolution of disputes on their merits, the Court has considered the opposition and declines to strike it. Concerns regarding the parties’ broader compliance with discovery obligations and scheduling orders are more appropriately addressed through case management and, if warranted, the discovery process.

Accordingly, the Court DENIES Defendant’s motion to strike Plaintiffs’ opposition.

III. Factual Background

Defendant sets forth the requisite statement of undisputed material facts in support of its motion. (Memorandum, pp. 2:3–4:14; Separate Statement of Undisputed Material Facts (“UMF”), Nos. 1–14.) Plaintiffs were members of Local Union 95 during their employment. Defendant is a member of Associated Roofing Contractors of the Bay Area Counties, Inc. (“ARCBAC”), a nonprofit corporation that operates as a consortium of local roofing and waterproofing contractors. Throughout Plaintiffs’ terms of employment with Defendant, a CBA has been in place, with detailed terms of employment between Local 95 members and ARCBAC members.

The terms of the CBA are periodically modified through negotiations between Local 95 and ARCBAC, and neither Plaintiffs nor Defendant can control these negotiations. In the summer of 2024, Local 95 and ARCBAC met and ultimately published the August 2024 CBA. The revised CBA contains a detailed section addressing dispute resolution, Article XXVIII, Section 3 of the August 2024 CBA, quoted as follows in Defendant's Separate Statement:

UMF No. 7: "The Impartial arbitrator shall have the authority to consolidate individual statutory claims for hearing but shall not have the authority to fashion a proceeding as a class, collective or representative action, to award relief to a group or class of employees in one grievance or arbitration proceeding, and under no circumstances may the impartial arbitrator hear or preside over any class, collective, or other claim joined or consolidated with another person's or entity's claim, unless all parties agree in writing."

UMF No. 10: "If the impartial arbitrator determines that the resolution of a statutory claim requires an interpretation of this Agreement, the impartial arbitrator shall certify a question to the Union and Employer seeking an interpretation of the relevant Section(s) of this Agreement. However, the preceding sentence does not apply to the agreement to exclude PAGA actions and whether the arbitrator may preside over any class, collective, or other claim joined by or consolidated with another person's or entity's claim."

UMF No. 11: "If a court of competent jurisdiction finds any term or clause in this Section to be invalid, unenforceable, or illegal, such a term or clause may be revised to the extent required . . . to render this Section enforceable or valid so as to preserve the agreement and intent to the fullest possible extent."

UMF No. 12: "This Section shall apply to any representative PAGA claims, class, and/or individual claims that arise or are pending during the term of the Parties' current collective bargaining agreement, regardless of when they were filed with any court or administrative agency."

IV. Legal Standard

A motion for summary adjudication is governed by the same standards as a motion for summary judgment, except that it operates on discrete components of an action. (Code Civ. Proc., § 437c, subd. (f)(2); *Hartline v. Kaiser Foundation Hospitals* (2005) 132 Cal.App.4th 458, 464.) A defendant moving for summary adjudication bears the initial burden of showing

that a cause of action has no merit or that an affirmative defense, claim for damages, or issue of duty cannot be maintained. (Code Civ. Proc., § 437c, subd. (p)(2).)

“A party may move for summary adjudication ... that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code” (Code Civ. Proc., § 437c, subd. (f)(1).) “Civil Code section 3294 provides for punitive damage upon clear and convincing proof the defendant acted with “oppression, fraud, or malice.” (*Stone v. Alameda Health System* (2024) 16 Cal.5th 1040, 1085.) A motion for summary adjudication may be granted “only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., § 437c, subd. (f)(1).) “It is settled that a claim for *punitive* damages is one of the substantive areas which is properly the subject of a motion for summary adjudication. [Citations.]” (*Catalano v. Superior Court* (2000) 82 Cal.App.4th 91, 92, emphasis added.) “[S]ummary adjudication is not properly granted as a piecemeal disposition of some of the asserted facts within a claim for punitive damages, but may only be granted when an entire claim for punitive damages is eliminated.” (*Ibid.*)

V. Discussion

Defendant “seeks an order dismissing plaintiffs’ claims for class-based damages, including the putative class actions and representative actions as articulated in plaintiffs’ operative complaints.” (Motion, p. 2:7–11.) The motion is “premised on the existence of a controlling Collective Bargaining Agreement which contains an express class-action waiver, thus prohibiting plaintiffs from initiating class or representative actions, or pursuing class-based remedies and damages.” (*Ibid.*)

A. The Motion is Procedurally Defective

The motion does not present a proper subject for summary adjudication, and this threshold defect is dispositive. Defendant contends that class action waiver or preclusion is an appropriate subject for summary adjudication. (Memorandum, pp. 5:4–20; Reply, pp. 5:17–7:2.) Plaintiffs argue the motion is a procedurally improper attempt to re-litigate the motion to compel arbitration. (Opposition, pp. 3:17–4:11.)

Defendant seeks an order that Plaintiffs may not pursue “class-based damages.” That is not a “claim for damages” within the meaning of the statute. The statutory “claim for damages” prong is directed to a claim for *punitive* damages as specified in Civil Code section 3294; it does not authorize the excision of class allegations from otherwise viable causes of action. Nor does the requested order dispose of any cause of action in its entirety. Each of Plaintiffs’ causes of action would survive the order as an individual claim because Defendant is actually seeking the piecemeal adjudication of the class dimension common to every cause of action.

In its reply, Defendant recasts the relief as the disposition of a “claim for damages,” and argues that the intent Code of Civil Procedure section 437c, subdivision (f)(1), in allowing summary adjudication of a claim for damages is “to avoid a situation where the parties are unclear about what types of damages can be pursued.” (Reply, p. 5:17–28.) Defendant relies on California Rules of Court, rule 3.1350, and *DeCastro West Chodorow & Burns, Inc. v. Superior Court* (1996) 47 Cal.App.4th 410 (*DeCastro*).

DeCastro does not help Defendant. There, the court examined the Legislative history of Code of Civil Procedure section 437c, subdivision (f)(1), stating as follows:

Accordingly, the current version of the statute, like the former version, contains parallel independent and dependent clauses which must be read together. Thus, when the independent clause is read in conjunction with its corresponding qualifying clause, the statute provides that a party may move for summary adjudication as to “one or more claims for damages” if that party contends that “there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code.” The reference to “one or more claims for damages” in the first part of the sentence is thus still qualified by, and limited to, *punitive* damages. We submit that there is no other reasonable interpretation of the sentence which gives effect to all of its words.

(*DeCastro, supra*, 47 Cal.App.4th at p. 421, emphasis added.) “We conclude that Code of Civil Procedure section 437c, subdivision (f)(1), does not permit summary adjudication of a single item of compensatory damage which does not dispose of an entire cause of action. The trial court properly denied the motion for summary adjudication on this basis.” (*Id.* at p. 422.) Thus, *DeCastro* assists Plaintiffs rather than Defendant because Defendant is not seeking summary adjudication of a claim for punitive damages. Rule 3.1350 likewise provides no support for Defendant’s position because it does not state or imply that a party may seek summary adjudication of a claim for class-based damages.

Defendant’s attempt to recharacterize the requested relief does not cure the defect. Class allegations are not a freestanding claim for damages; they describe the representative capacity in which Plaintiffs pursue relief. In substance, Defendant seeks pre-certification dismissal of class allegations. The appropriate vehicle for that relief is a motion to strike class allegations, not a motion for summary adjudication.

Defendant’s principal authority, *In re Marriott International, Inc.* (4th Cir. 2023) 78 F.4th 677, does not compel a different result. It is an out-of-jurisdiction federal decision construing the Federal Rules of Civil Procedure, and it does not displace the requirements of California’s Code of Civil Procedure, section 437c, subdivision (f)(1).

Accordingly, the Court DENIES the motion for summary adjudication because the relief requested may not be sought by summary adjudication under California law. Nevertheless, the Court will also address the merits of motion in the interest of efficiency.

B. The Motion Fails on the Merits

In addition to failing on procedural grounds, the motion also independently fails on the merits. As discussed below, even if the motion was procedurally proper (and it is not), Defendant fails to meet its initial burden on this motion for summary adjudication because it fails to set forth a legal or factual basis that would support an order dismissing plaintiffs’ claims for class-based damages.

1. The CBA’s Class Restrictions

Defendant’s motion is based on the premise that the CBA’s restrictions regarding class claims apply here. (See Motion, p. 2:9–11; Memorandum, pp. 5:21–6:4.) However, these restrictions have no application in this proceeding. (Opposition, p. 5:5–25.) The class restrictions on which Defendant relies appear in Article XXVII, Section 3 of the August 2024 CBA. By their terms, those restrictions govern only the authority of the arbitrator.

Section 3 provides that “[t]he Impartial arbitrator shall have the authority to consolidate individual statutory claims for hearing but shall not have the authority to fashion a proceeding as a class, collective or representative action . . . and under no circumstances may the impartial

arbitrator hear or preside over any class, collective, or other claim joined or consolidated with another person's or entity's claim, unless all parties agree in writing." (UMF No. 9.) A related clause likewise speaks to "whether the arbitrator may preside over any class, collective, or other claim." (UMF No. 10.) Each operative restriction is addressed to the impartial arbitrator and limits what that arbitrator may do. Nothing in Article XXVIII, Section 3 states that a covered employee waives the right to bring or maintain a class claim in a court of law.

Defendant's reliance upon the retroactivity language is likewise unavailing. The clause provides that "[t]his Section shall apply to any representative PAGA claims, class, and/or individual claims that arise or are pending . . . regardless of when they were filed." (UMF No. 12.) While this clause retroactively extends the reach of the CBA's arbitration scheme (i.e., "this Section"), it does not create a free-standing bar to class litigation regardless of the forum.

The CBA's class restrictions are part of the arbitration framework this Court has deemed waived, and they do not operate as a waiver of the right to pursue class claims in a judicial forum. This distinction is determinative of the merits of Defendant's motion. The class restrictions were drafted to operate within and as a constraint upon the arbitral forum. The Court has already determined that Defendant waived its right to compel arbitration. With arbitration unavailable, there is no arbitrator whose authority these provisions can limit.

Accordingly, the Court DENIES the motion for summary adjudication for the additional reason that the CBA's restrictions regarding class allegations have no application to this proceeding.

2. The Severance Clause

Defendant alternatively invokes the revision/severance clause of Article XXVIII, Section 3, which provides that "[i]f a court of competent jurisdiction finds any term or clause in this Section to be invalid, unenforceable, or illegal, such a term or clause may be revised . . . so as to preserve the agreement and intent to the fullest possible extent." (Memorandum, pp. 6:5–8:4.) UMF No. 11.) By its plain terms, the clause is triggered only upon a judicial finding that a term is invalid, unenforceable, or illegal.

The Court made no such finding in its April 28, 2025 Order. The Court held that Defendant had waived its right to enforce that provision through its own litigation conduct, not that the arbitration provision was invalid, unenforceable, or illegal. Waiver by conduct is categorically distinct from a finding of invalidity, unenforceability, or illegality. The condition that activates the revision/severance clause has not occurred, and the clause therefore provides no basis for the Court to revise Section 3.

Defendant's reliance upon *Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478 is misguided. Revision and severance address the treatment of unconscionable or unlawful contract terms; they are not a mechanism for restoring a contractual right that the proponent has forfeited through delay. Likewise, *Epic Systems Corp. v. Lewis* (2018) 584 U.S. 497 establishes only that a union may, in principle, agree to a waiver of class litigation. It does not answer the operative question here, which is whether the August 2024 CBA did so as to the judicial forum. For the reasons stated above, it did not.

3. Defendant's Remaining Arguments

Defendant next asks the Court to correct what it characterizes as factual errors underlying the April 28, 2025 waiver finding. (Memorandum, pp. 8:5–9:19.) Defendant disclaims any intent to seek reconsideration. To the extent the request seeks reconsideration in substance, it would be governed by Code of Civil Procedure section 1008, which requires new or different facts, circumstances, or law, supported by an appropriate affidavit, and which is exclusive and jurisdictional. (See *Baldwin v. Home Savings of America* (1997) 59 Cal.App.4th 1192, 1198; *Branner v. Regents of University of California* (2009) 175 Cal.App.4th 1043, 1048.) The label affixed to the request does not control. (*California Correctional Peace Officers Assn. v. Virga* (2010) 181 Cal.App.4th 30, 42–43.) Because the motion fails for the independent reasons stated above, the Court need not, and does not, revisit its prior ruling to resolve this motion.

Defendant also argues that Plaintiffs breached the CBA by failing to provide pre-suit written notice of their claims. (Memorandum, pp. 9:20–10:7.) The notice provision Defendant quotes (UMF No. 17) is drawn from the August 2024 CBA, which postdates the filing of both

complaints in 2022. In any event, an alleged failure to satisfy a notice provision does not establish that Plaintiffs waived the right to pursue class claims, and it does not render summary adjudication appropriate.

Defendant further contends that every prospective class member would be subject to the same CBA restrictions. (Reply, p. 7:3–21.) That argument concerns the eventual merits of class certification. It does not establish that the present motion completely disposes of a proper subject under section 437c, subdivision (f)(1), and it does not alter the analysis above.

VI. Conclusion

For the reasons stated above, the Court DENIES the motion for summary adjudication. The Court also DENIES Defendant’s motion to strike Plaintiffs’ opposition as untimely.

Plaintiffs shall prepare the order in accordance with California Rules of Court, rule 3.1312.

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Calendar Line 2

Case Name: *Rubalcaba v. R&L Carriers Shared Services, LLC*
Case No.: 23CV423929

This is a representative action arising from alleged wage and hour violations. Before the Court is defendant R&L Carriers Shared Services, LLC's ("Defendant") demurrer to plaintiff Joseph Rubalcaba's first amended complaint ("FAC"). For the reasons stated below, the Court OVERRULES the demurrer to the FAC.

I. Background

On October 6, 2023, Plaintiff began this action by filing a complaint against Defendant asserting a sole cause of action for violation of the Private Attorneys General Act ("PAGA"). The same day, Plaintiff filed a separate class action complaint against Defendant in this superior court: *Rubalcaba v. R&L Carriers Shared Services, LLC*, Case No. 23CV423930 (the "Class Action"). Defendant subsequently filed a notice of removal of the Class Action to federal court: *Joseph Rubalcaba v. R&L Carriers Shared Services, LLC* (N.D. Cal., No. 3:23-cv-06581) (the "Federal Action").

The District Court has dismissed the Federal Action. On April 23, 2024, the District Court granted the motion to dismiss Plaintiff's first amended complaint. (Federal Action (N.D. Cal. Apr. 23, 2024) 2024 U.S. Dist. LEXIS 739958.) Plaintiff filed a second amended complaint in May 2024, and on March 6, 2025, the District Court dismissed the second amended complaint with prejudice. (Federal Action (N.D. Cal. Mar. 6, 2025) 2025 U.S. Dist. LEXIS 40956.)

On May 7, 2026, this Court issued an order granting Plaintiff's motion to dismiss the Class Action (Case No. 23CV423930) without prejudice.

In this action, on November 10, 2025, the Court sustained Defendant's demurrer to the complaint with leave to amend. The Court overruled the demurrer on the ground of uncertainty and sustained the demurrer on the ground of failure to state sufficient facts under Code of Civil Procedure section 430.10, subdivision (e). The Court did not reach Defendant's argument that Plaintiff had failed to satisfy the PAGA pre-filing requirements.

Plaintiff filed his first amended complaint (“FAC”) on November 26, 2025. As before, the FAC asserts a sole PAGA cause of action. Defendant’s demurrer to the FAC is before the Court. Plaintiff opposes the demurrer.

II. Discussion

A demurrer tests the legal sufficiency of the complaint. (*Chen v. PayPal, Inc.* (2021) 61 Cal.App.5th 559, 568.) It reaches only the contents of the pleading and matters subject to judicial notice. (*Weil v. Barthel* (1955) 45 Cal.2d 835, 837; Code Civ. Proc., § 430.30, subd. (a).) The Court assumes the truth of all material facts properly pleaded, however improbable, and construes the allegations liberally with a view to substantial justice. (*Align Technology, Inc. v. Tran* (2009) 179 Cal.App.4th 949, 958; *Glennan v. Allergan, Inc.* (2016) 247 Cal.App.4th 1, 6.) The Court does not assume the truth of contentions, deductions, or conclusions of law or fact. (*George v. Automobile Club of Southern California* (2011) 201 Cal.App.4th 1112, 1120.)

Defendant requests judicial notice of court records filed in related proceedings. Such records are proper subjects of judicial notice under Evidence Code section 452, subdivision (d). (*People v. Woodell* (1998) 17 Cal.4th 448, 455.) The Court GRANTS the request as to the existence of the court records but not as to the truth of any hearsay statements contained therein.

Defendant demurs to the FAC on two grounds. First, Defendant contends Plaintiff has failed to establish compliance with the prefiling requirements. (Code Civ. Proc., § 430.10, subds. (a), (e).) Second, Defendant contends the FAC fails to allege sufficient facts to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).)

A. Exhaustion of Administrative Remedies

Defendant initially contends Plaintiff has failed to establish compliance with PAGA’s prefiling requirements, pointing to Labor Code section 2699.3, subdivision (a)(1). (Memorandum, pp. 5:8–7:26.) Defendant argues the FAC must establish PAGA notice compliance on its face. It contends Plaintiff must either attach the LWDA notice or plead its contents with specificity, and that the FAC here does neither. According to Defendant, the FAC

pleads only bare conclusions that notice was given and that the prerequisites were satisfied. (FAC, ¶¶ 17–18.) Defendant also argues that the limitations period has run such that any defect is now incurable.

Plaintiff responds that he has satisfied the notice requirement. (Opposition, pp. 4:9–7:12) He asserts that section 2699.3 imposes no attachment requirement, and further, that the FAC pleads: the date of the notice (August 2, 2023); the method (online to the LWDA and certified mail to the employer); and the agency’s non-response within 65 days. Plaintiff also submitted the actual PAGA letter as an exhibit to the Bogosyan declaration filed with his opposition.

In reply, Defendant disputes each of Plaintiff’s arguments. (Reply, pp. 1:23–5:3.) It contends the declaration is improper extrinsic evidence the Court cannot consider on demurrer. Defendant further contends that, even if considered, the letter merely parrots the Labor Code and is facially deficient.

Compliance with the pre-filing requirements of section 2699.3 is mandatory. (*Caliber Bodyworks, Inc. v. Superior Court* (2005) 134 Cal.App.4th 365, 381–384, overruled in part on other grounds in *ZB, N.A. v. Superior Court* (2019) 8 Cal.5th 175, 196, fn. 8.) Nevertheless, the question presented on demurrer is not whether Plaintiff has proven compliance, but whether the FAC adequately alleges it.

Here, the FAC’s allegations are sufficient. Plaintiff alleges he submitted written notice to the LWDA on August 2, 2023 by online submission, he served Defendant by certified mail, and he did not receive notice from the LWDA within sixty-five calendar days of the postmark date. (FAC, ¶¶ 17–18.) These allegations track the procedural elements of section 2699.3, subdivision (a). The statute imposes no requirement that the notice be attached to the complaint, as Defendant acknowledges in reply. The authorities Defendant cites for the proposition that the notice’s contents must be pleaded are principally federal district court decisions applying federal pleading standards, which do not govern a demurrer before this Court.

Defendant’s further contentions also fail to persuade the Court. Defendant’s argument that the notice itself is substantively deficient because it parrots the Labor Code is not properly

before the Court on demurrer. The notice is not attached to the FAC, and it is not a proper subject of judicial notice as to its contents. Plaintiff submitted the notice as an exhibit to a declaration filed with his opposition, but the Court may not consider extrinsic evidence in ruling on a demurrer. (*Lambert v. Carneghi*, supra, 158 Cal.App.4th at p. 1126.) The Court therefore does not consider the declaration or its exhibit, and it expresses no view on the substantive adequacy of the notice. That issue, if pressed, is one for a later stage on a proper record.

Accordingly, the Court OVERRULES the demurrer on the ground of failure to exhaust administrative remedies.

B. Sufficiency of Facts

Defendant next contends the FAC fails to allege sufficient facts to constitute a cause of action. (See Memorandum, pp. 8:1–15:21; Opposition, pp. 7:13–15:15; Reply, pp. 5:4–10:13.) The Court’s November 10, 2025, order identified defects in the initial complaint: it did not allege a violation was committed against Plaintiff, it did not allege Plaintiff’s type of work or responsibilities, it was conclusory and generic, and it extensively relied upon information and belief. The question before the Court is whether the FAC cures these defects.

The FAC does add new and more specific allegations. It identifies Plaintiff as an hourly, non-exempt driver, employed from February 11, 2019 to December 12, 2022, and paid between \$28.63–\$33.37 per hour. (FAC, ¶ 20.) The FAC identifies three specific workweeks of uncompensated overtime: September 12–18, 2021; October 10–16, 2021; and July 31–August 12, 2022. (*Id.* at ¶ 28.) Plaintiff alleges he received non-discretionary incentive bonuses (\$500 in 2021, \$200 in 2022) that were not factored into the regular rate used to calculate overtime. (*Id.* at ¶¶ 19, 30.) The FAC names the dispatcher, Frank Martinez, who interrupted his meal periods weekly for delivery status updates. (*Id.* at ¶ 30.) The FAC alleges Plaintiff missed rest breaks two to three times per week. (*Id.* at 31.) The FAC also identifies a specific wage statement (with pay date July 15, 2022) and a specific unreimbursed expense (\$10.91 for safety footwear, incurred on May 6, 2020). (*Id.* at ¶¶ 36, 47.)

Here, these allegations respond directly to the deficiencies the Court identified. The FAC now alleges Plaintiff's position and the nature of his work, identifies particular violations committed against him, and supplies dates, amounts, and a named actor. The pleading is no longer primarily composed of conclusory and generic language.

Defendant argues that the additions remain insufficient. Defendant contends, among other things, that the FAC does not allege total hours worked or wages owed for the identified weeks; that the wage-statement allegation defeats itself because the listed categories of hours can be summed (*Morgan v. United Retail Inc.* (2010) 186 Cal.App.4th 1136, 1147); that the footwear expense is a basic wardrobe item not subject to reimbursement (*Townley v. BJ's Restaurants, Inc.* (2019) 37 Cal.App.5th 179, 185); and that Plaintiff continues to plead on information and belief.

Defendant's arguments do not warrant sustaining the demurrer. The FAC alleges a single PAGA cause of action. A general demurrer does not lie to part of a cause of action, and if any part is well pleaded, the demurrer must be overruled. (*Fire Ins. Exchange, supra*, 116 Cal.App.4th at p. 452.) Here, at a minimum, Plaintiff's allegation that non-discretionary bonuses were excluded from the regular rate, resulting in underpaid overtime during identified workweeks, states a cognizable theory pleaded with sufficient particularity. That theory establishes Plaintiff as an aggrieved employee and supports the cause of action. (Lab. Code, § 2699, subd. (c).) Whether Plaintiff can prove the precise hours and amounts is a matter of proof, not pleading.

Defendant's remaining contentions are directed at the merits of particular theories rather than the legal sufficiency of the single cause of action as a whole. Whether the July 15, 2022 wage statement violates section 226(a), or whether the footwear expense is reimbursable under section 2802, may be tested at a later stage. They do not defeat the cause of action on demurrer.

Nor is Plaintiff's continued use of allegations on information and belief fatal. Such allegations are permissible, and the FAC no longer consists almost entirely of them. It now contains specific allegations within Plaintiff's personal knowledge, including identified

workweeks, a named individual, an identified wage statement, and an identified expense and amount.

Lastly, to the extent Defendant contends Plaintiff has not adequately identified the other aggrieved employees, a representative PAGA action need not satisfy the requirements applicable to class actions. (*Arias v. Superior Court* (2009) 46 Cal.4th 969, 980–987.) Under the version of the PAGA statute applicable here, an employee affected by at least one Labor Code violation may seek civil penalties on behalf of the State for violations by the same employer. (*Huff v. Securitas Security Services USA, Inc.* (2018) 23 Cal.App.5th 745, 753–754.) Plaintiff's allegations suffice at the pleading stage.

Accordingly, the Court OVERRULES the demurrer on the ground of failure to state sufficient facts.

III. Conclusion

The Court OVERRULES the demurrer to the First Amended Complaint.

Defendant shall file and serve its answer within 10 days of entry of the formal order. (Cal. Rules of Court, rule 3.1320(j).)

Plaintiff shall prepare the order in accordance with California Rules of Court, rule 3.1312.

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